

2. **Corporations.** — A *corporation*¹ could not have been seised to a use, for, as was gravely observed, it had no *soul*, and how then could any confidence be reposed in it? But the technical rules upon which this doctrine proceeded, have long since ceased to operate in respect of trusts; and at the present day every body corporate, whether civil or ecclesiastical (*b*), is compellable in equity to carry the intention into execution (*c*). “A trust,” said Lord Romilly, “may be of two characters, it may be of a general character or of a private and individual character. A person might leave a sum of money to a Corporation in trust to support the children of A. B., and pay them the principal at 21. That would be a private and particular trust which the children could enforce against the corporation if the corporation applied the property to its own benefit. On the other hand, a person might leave money to a corporation in trust for the benefit of the inhabitants of a particular place, or for paving or lighting the town. That would be a public trust for the benefit of all the inhabitants, and the proper form of suit in the event

(*b*) *Attorney-General v. St. John's Hosp.* 2 De G. J. & S. 621.

(*c*) See *Attorney-General v. Landerfield*, 9 Mod. 286; *Dummer v. Corporation of Chippenham*, 14 Ves. 252; *Green v. Rutherford*, 1 Ves. 468; *Attorney-General v. Whorwood*,

1 Ves. 536; *Attorney-General v. Mayor of Stafford*, Barn. 33; *Attorney-General v. Foundling Hospital*, 2 Ves. jun. 46; *Attorney-General v. Earl of Clarendon*, 17 Ves. 499; *Attorney-General v. Caius College*, 2 Keen, 165.

¹ Corporations may act as trustees, if not inconsistent with their purposes or contrary to their charters. *Trustees v. King*, 12 Mass. 546; *Dublin Case*, 38 N. H. 577; *Vidal v. Girard*, 2 How. 187; *In re Howe*, 1 Paige, 214; *In re Newark Sav. Inst.* 28 N. J. Eq. 552; *Society v. Atwater*, 23 Conn. 34; *Greenville Acad.* 7 Rich. Eq. 476. Cities and towns may be trustees. *School v. Canal Co.* 9 Ohio, 217; *Webb v. Neal*, 5 Allen, 575; *Sutton v. Cole*, 3 Pick. 232; *Sudbury v. Belknap*, 1 Pick. 512; *Newhall v. Wheeler*, 7 Mass. 189; *Norton v. Leonard*, 12 Pick. 152; *Allen v. Macy*, 109 Ind. 559; *Piper v. Moulton*, 72 Me. 155; *Perin v. McMicken*, 15 La. Ann. 154. So may overseers of the poor, trustees of school funds and banks. No. *Hempstead v. Hempstead*, 2 Wend. 109; *Carmichael v. Trustees*, 3 How. (Miss.) 84; *Morris v. Way*, 16 Ohio, 478; *Dartmouth Coll. v. Woodward*, 4 Wheat. 636; *People v. Ins. Co.* 15 Johns. 358; *Beaty v. Knowler*, 4 Pet. 152. In case a corporation may not be a trustee, its title is good against outside parties, but as the trust cannot be enforced, a new trustee will be appointed. *Harpending v. Dutch Church*, 16 Pet. 402; *Perin v. Carey*, 24 How. 465; *Chapin v. School Dist.* 35 N. H. 445; *Winslow v. Cummings*, 3 Cush. 358. So may unincorporated associations. *Tucker v. Seaman's Aid Soc.* 7 Met. 188; *Burbank v. Whitney*, 24 Pick. 146; *Inglis v. Snug Harbour*, 3 Pet. 114; *State v. Rusk*, 23 Wis. 636.